

Attachment III - NetApp Renewal - BNJ Redacted - 70Z07925QISD40003

**Justification for an Exception to Fair Opportunity
Brand Name FAR 16.505(a)**

1. Agency and contracting activity.

The Department of Homeland Security (DHS), U.S. Coast Guard (USCG) Command, Control, Communications, Computers, Cyber, and Intelligence Service Center (C5ISC), 7323 Telegraph Road Alexandria, VA 20598-7320 prepared this justification for an exception to fair opportunity.

2. Nature and/or description of the action being approved.

The USCG intends to award a Task order (TO) for brand-name NetApp hardware and software annual maintenance renewal support, pursuant to FAR 16.505 (a)(4)(i), restricting consideration to an item peculiar to one manufacturer. This brand name requirement will result in a Firm-Fixed Price (FFP) TO, issued amongst authorized and certified NetApp resellers and service providers on NASA SEWP V GWAC IDIQs.

3. Description of Supplies/Services.

The USCG requires NetApp hardware and software maintenance support to meet and sustain security requirements on the USCG network. Through this annual maintenance, the USCG receives technical support, security patch updates, and software release updates. The annual hardware and software maintenance renewal will be utilized for a period of 12-months (4/1/2025 – 3/31/2026, unless End of Service Life is reached prior) with an estimated amount of [REDACTED], using FY25 funds.

Item Description	Part Number/ID Number	Quantity
Non Returnable Disk Plus,Renewal,e	CS-R-NRD2-E	18
Non Returnable Disk Plus,Renewal,e	CS-R-NRD2-G	4
Non Returnable Disk Plus,Renewal,e	CS-WARRANTY-EXTENSION	4
SE Secure for Gvt,7x24,4hr Onsite	CS-SEC-4HR	16
Supplemental Support Management	CS-SUPPORT-MANAGEMENT	18
SE Secure for Gvt,7x24,4hr Onsite, Post Warranty	CS-SEC-4HR	4
SE Secure for Gvt,7x24,4hr Onsite, Post Warranty	CS-SUPPORT-MANAGEMENT	4
Warranty Extension, Post Warranty	CS-WARRANTY-EXTENSION	18
SupportEdge Premium 4hr Onsite	CS-O2-4HR	2

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting exception to fair opportunity is FAR 16.505(b)(2)(i)(B). “Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.” This requirement will be procuring items peculiar to one manufacturer on a band name basis in accordance with FAR 16.505(a)(4).

NetApp hardware and software is proprietary and is currently used throughout the USCG network infrastructure at Data Centers and Hub sites. The hardware and software maintenance renewal is necessary to ensure the C5ISC data centers can continue to meet the change management and configuration management COMDTINST 4130.6C mandates for all components that reside within their boundaries. These enterprise-class storage devices host compute (chiefly server virtualization) and server data, and provide the performance, durability, and redundancy required to support USCG servers and applications, including those designated mission-essential or congressionally mandated systems. These storage devices provide storage for USCG users, servers, and application data, ensuring confidentiality, integrity and availability requirements are met. These storage devices support backup and retention requirements for USCG data. The annual maintenance must be purchased to keep all components up to date, receive security patches and firmware updates as they are released, and maintain hardware capabilities.

If the maintenance is not purchased and the equipment experiences a hardware failure, replacement parts will not be received thus possibly causing various Mission Essential System (MES) and other systems to be unavailable, which could result in loss of life. Also, the information stored on the NetApp devices by the Business Systems have record retention requirements from NARA (National Archive and Records Administration) as well as DOD mandates for system backups. If these requirements are not met, the Business Systems could potentially have their systems removed from the network, face legal ramifications and cause unnecessary risk those that require immediate access to the system (i.e. Search and Rescue (SAR)). For this reason, the maintenance must be purchased from an authorized and certified reseller and service provider that is registered with the manufacturer (NetApp). No other brands are authorized or certified by NetApp and are also not compatible with NetApp to be able to provide the support. Therefore, unable to provide this maintenance and support.

Due to NetApp’s proprietary nature, the contracting strategy that will provide the Government with the best value is competing the brand-name NetApp renewal amongst the brand name resellers found on NASA SEWP.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer determines that the anticipated cost will be fair and reasonable based on adequate price competition between two or more responsible offerors. There are multiple

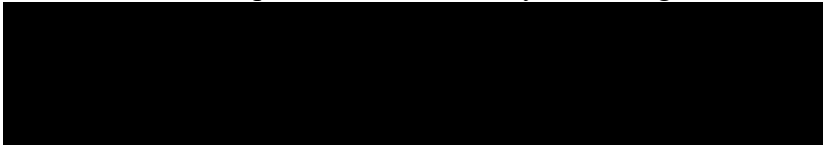
authorized resellers available which will ensure adequate competition. The Contracting Officer will also perform a price analysis to determine that the price at the time of award represents the overall best value for the Government and is consistent with the contract vehicle terms.

6. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

Currently, NetApp is proprietary and is utilized on the USCG network. The availability of multiple re-sellers capable of providing this brand name requirement ensures competition. The government will continue to conduct market research into other software and support options that may satisfy future requirements as software and hardware components become end of life.

7. Contracting Officer's Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

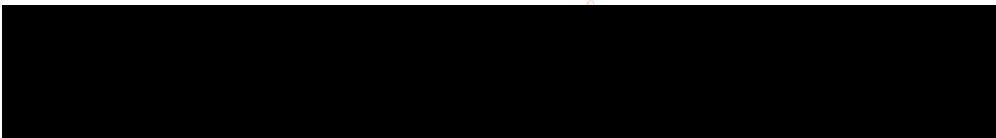


Date

Contracting Officer

8. Technical/Requirements Personnel Certification.

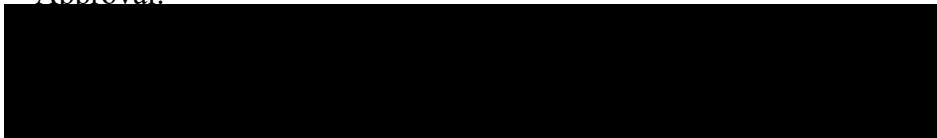
I certify that this requirement meets the Government's minimum need and that the supporting data, which forms a basis for the justification, is accurate and complete.



Date

Technical Representative

Approval:



Date

Contracting Officer